

Present: Shri Lokendra S. Raghav, Senior Standing Counsel
along with Shri Hari Kishan, Senior Public Prosecutor
for SFIO

An application for issuance of proclamation against accused No. 136 Akshat Singh in terms of order dated 25.03.2022 was filed on 10.05.2022 by the complainant counsel on the ground that summons staff of Police has not been received any proclamation in respect of accused No. 136 Akshat Singh.

Report from the Ahlmad has been called. Report perused. Arguments heard.

Vide order dated 25.03.2022, proclamation against accused No. 136 (Akshat Singh) along with other accused was ordered to be issued and the case was adjourned for recording statement of Executing Official/Constable on 07.05.2022. Executing Officials/Constables with regard to other accused persons except accused No. 136 Akshat Singh appeared and their statements were recorded on 07.05.2022. Notice to Executing Official/Constable with regard to proclamation of accused No. 136 Akshat Singh was ordered to be issued for date fixed i.e. 02.07.2022 for his appearance and recording statement.

Report of Ahlmad of this Court points out that case file COMA-5-2019 SFIO Vs. Adarsh Buildtech received by transfer on 06.05.2022. Thereafter, report from the Court of Shri Phalit Sharma, learned Additional Sessions Judge, Gurugram, predecessor of this Court was also called. Order dated 10.05.2022 passed by Shri Phalit Sharma, learned Additional Sessions Judge, Gurugram and report of the Ahlmad of the Court of Shri Phalit Sharma, learned Additional Sessions Judge, Gurugram have also been received. Perusal of the same reveals that Naib Court namely Ct. Satish Kumar attached with the Court of Shri Phalit Sharma, learned ASJ, Gurugram had played dirty by withholding or destroying the notice for publication handing over to him on 30.04.2022, meaning thereby the proclamation against accused No. 136 Akshat Singh

had not been issued. Therefore, a fresh proclamation is required to be issued against accused No. 136 Akshat Singh.

Keeping in view the facts and circumstances of the case, proclamation against accused No. 136 Akshat Singh be issued for date already fixed i.e. 02.07.2022. The proclamation shall be published on or before 25.05.2022. The Executing Constable shall appear for his statement in the Court on 30.05.2022.

Vide order dated 10.05.2022 passed by Shri Phalit Sharma, learned Additional Sessions Judge, Gurugram, the matter has already been referred to Commissioner of Police, Gurugram for an enquiry. Since the matter has already been referred to Commissioner of Police for enquiry against Ct. Satish Kumar, Naib Court attached with the Court of Shri Phalit Sharma, learned Additional Sessions Judge, Gurugram, this Court at this stage deems it appropriate not to initiate any further action against Ct. Satish Kumar, Naib Court attached with the Court of Shri Phalit Sharma, learned Additional Sessions Judge, Gurugram, till the enquiry report from the Commissioner of Police is received. However, it is expected for the Commissioner of Police, Gurugram to conduct and conclude the enquiry within 3 months from receipt of the order dated 10.05.2022 passed by Shri Phalit Sharma, learned Additional Sessions Judge, Gurugram, under intimation to this Court. Copy of the order be sent to Commissioner of Police, Gurugram for his information and necessary action.

File be put up on 30.05.2022 for recording statement of Executing Official/Constable.

(Dr.D.N.Bhardwaj)
Additional Sessions Judge,
Gurugram. UID No.HR-0100
11.05.2022

Vijeta
Stenographer-II